

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

ELSA RIVERA,

Index No.:

Plaintiff,

– against –

COMPLAINT

CITY OF NEW YORK and JOHN DOES 1-5,

Defendants.

Plaintiff Elsa Rivera, by her attorneys, Mark A. Marino, PC, for her Complaint against the defendants, alleges as follows:

NATURE OF THE ACTION

1. On April 16, 2013, Defendant John Does 1-5, police officers from the New York City Police Department (“NYPD”), battered down the door to the apartment belonging to Plaintiff Elsa Rivera (“Plaintiff”) and ransacked the apartment without a warrant, probable cause, consent, or other privilege. Plaintiff was then arrested without probable cause, consent, or other privilege and held in police custody and in Central Booking for approximately sixteen hours before getting released before arraignment and receiving a letter from the district attorney’s office stating that she would not be prosecuted. (The actions and occurrences between approximately 6:00 am on April 16, 2013 and approximately 11:00 pm on April 16, 2013, detailed further below, are hereinafter referred to, collectively, as the “Incident.”)

2. The actions of Defendant City of New York and Defendant John Does 1-5 caused injuries to Plaintiff Elsa Rivera, including severe psychological injuries, emotional distress, loss of freedom, and past and future medical expenses, among other things.

PARTIES

3. Plaintiff Elsa Rivera ("Plaintiff") is, and was at the time of the Incident, a resident of New York County, State of New York.

4. Defendant City of New York is, and was at the time of the Incident, a municipal corporation duly organized under, and existing by virtue of, the laws of the State of New York.

5. Defendant John Does 1-5 (collectively, "John Does") were, at the time of the Incident, police officers or police personnel employed by the NYPD – and thus Defendant City of New York – whose identities will become apparent during discovery.

6. One of Defendant John Does, to the best of Plaintiff's recollection, is a short, light-skinned Hispanic male.

7. One of Defendant John Does, to the best of Plaintiff's recollection, is a young, light-skinned male of average height.

8. One of Defendant John Does, to the best of Plaintiff's recollection, is a slender, dark-skinned male approximately six feet tall.

9. Upon information and belief, one of the Defendant John Does is named "Willie."

10. Upon information and belief, Defendant John Does are either with the NYPD's 25th Precinct or with the New York City Housing Authority Police Department (the "NYCHAPD").

11. The NYCHAPD is a branch of the NYPD and thus part of an agency under the control of Defendant City of New York.

12. At all relevant times, including, but not limited to, the time during which the Incident took place, each of the Defendant John Does was acting within the scope of employment with the NYPD and Defendant City of New York.

13. At all relevant times, including, but not limited to, the time during which the Incident took place, each of Defendant John Does was acting under color of state law.

14. Defendants City of New York and Defendant John Does are referred to herein, collectively, as “Defendants.”

JURISDICTION AND VENUE

15. This Court has jurisdiction over the parties pursuant to New York’s Civil Practice Law and Rules (“CPLR”) §301.

16. Venue in this County is proper pursuant to CPLR §504(3).

17. Plaintiff demands judgment against Defendants in an amount exceeding the jurisdiction of all lower courts.

PROCEDURAL REQUIREMENTS

18. Plaintiff has complied with General Municipal Law Section 50 and all procedural requirements necessary to commence a lawsuit against Defendants, including Defendant City of New York.

19. This is an action for injuries sustained by Plaintiff arising out of the Incident.

20. On or about May 14, 2013, within ninety days after the accrual of the instant action, a satisfactory Notice of Claim was filed with Defendant City of New York, or its agent(s), on behalf of Plaintiff.

21. On or about July 22, 2013, Plaintiff appeared for, and testified at, a hearing pursuant to Section 50(h) of the General Municipal Law of New York at the request of Defendant City of New York or its agent(s).

22. Defendant City of New York, and/or its agent(s), has refused or neglected to make any adjustment or payment on Plaintiff’s claims (as stated in Plaintiff’s Notice of Claim).

23. Plaintiff commences this action within one year and ninety days of the date of accrual of the instant action.

FACTUAL ALLEGATIONS

24. At approximately 6:00 am on April 16, 2013, Defendant John Does bashed in the door to Plaintiff's apartment, located at 1505 Park Avenue, Apartment 16-H, New York, New York 10029 (the "Apartment").

25. Defendant John Does stormed into the Apartment.

26. Defendant John Does were not in uniform.

27. Defendant John Does were not wearing badges on the outside of their clothing.

28. Plaintiff got out of bed and went to her bedroom door.

29. One of Defendant John Does met Plaintiff at her bedroom door told her to get on the floor while pointing a gun at her face.

30. One of Defendant John Does pushed Plaintiff's brother onto his bed and put a gun to his head.

31. One of Defendant John Does handcuffed Plaintiff's brother and pushed him into the living room.

32. One of Defendant John Does pulled Plaintiff from the ground, handcuffed her, and took her to the living room with her brother.

33. Plaintiff's two dogs urinated on themselves out of fear.

34. One of Defendant John Does kept asking Plaintiff for guns and drugs in the Apartment.

35. There were no guns or drugs in the Apartment.

36. One of Defendant John Does told Plaintiff that if she did not tell him where the guns and drugs were, he would make sure Plaintiff was kicked out of the Apartment.

37. One of Defendant John Does told Plaintiff that if she did not tell him where the guns and drugs were, he would throw some of her belongings in the garbage.

38. One of Defendant John Does told Plaintiff that if she did not tell him where the guns and drugs were, he would call the ASPCA to take her dogs.

39. One of Defendant John Does told Plaintiff that if the dogs were taken to the ASPCA and nobody takes them within seven days, the dogs would be killed.

40. One of Defendant John Does told Plaintiff that if she did not tell him where the guns and drugs were, he would take her to jail.

41. One of Defendant John Does told Plaintiff that if she did not tell him where the guns and drugs were, she would be living in a shelter.

42. Plaintiff asked Defendant John Does for a warrant.

43. In response to Plaintiff's request to see a warrant, one of Defendant John Does told Plaintiff that his "boss" had the warrant.

44. A short time later, Plaintiff's brother asked one of Defendant John Does for a warrant.

45. Plaintiff was never shown a warrant.

46. One or more of Defendant John Does interrogated Plaintiff and her brother for at least thirty minutes.

47. Plaintiff was never read her Miranda rights at any time during the Incident.

48. One or more of Defendant John Does searched the Apartment and threw items around the Apartment.

49. One of Defendant John Does brought Plaintiff downstairs and out in front of the apartment building, handcuffed, at approximately 7:00 am, in full view of parents are bringing their children to school.

50. Plaintiff was humiliated and embarrassed and asked one of the Defendant John Does to take her somewhere else.

51. After approximately five minutes, Plaintiff was taken to, and placed in, an unmarked van.

52. After approximately twenty minutes, Plaintiff was taken to the NYPD's 25th Precinct, fingerprinted, photographed, and placed alone in a cell for over two hours.

53. Plaintiff was taken to Central Booking and arrived at approximately 11:30 am.

54. Plaintiff was placed in a cell with six other women and huddled in the corner, speaking very little to anyone.

55. Plaintiff was released from Central Booking at approximately 10:45 pm.

56. Upon her release, Plaintiff received a document from the NYPD, dated April 16, 2013, stating that the Office of the District Attorney was refusing to prosecute her for any alleged crimes.

57. Plaintiff later acquired a letter from the Office of the District Attorney, dated April 18, 2013, stating that they had declined to prosecute Plaintiff for any alleged crimes.

58. Plaintiff went straight to the Apartment where she found her door destroyed.

59. Despite numerous requests to the New York City Housing Authority, Plaintiff's door has not been fixed to this day.

60. The actions of Defendant City of New York and Defendant John Does 1-5 caused injuries to Plaintiff Elsa Rivera, including severe psychological injuries, emotional distress, loss

of freedom, and past and future medical expenses, among other things. (These injuries, along with the injuries described in Paragraph 2 above, are hereinafter referred to as the "Injuries.")

61. This action falls within one or more of the exemptions set forth in CPLR §1602.

FIRST CAUSE OF ACTION
VIOLATION OF 42 U.S.C. 1983 – FALSE ARREST/UNLAWFUL DETENTION
As Against Defendant John Does

62. Plaintiff repeats and realleges each and every allegation contained in Paragraphs 1 through 61, inclusive, as though fully set forth herein.

63. Under the Constitution of the United States of America and 42 U.S.C. 1983, Plaintiff has the right to be free from unreasonable and illegal searches and seizures, including false arrests.

64. One or more of Defendant John Does, including the arresting officer, violated Plaintiff's rights when he/they intentionally arrested and confined Plaintiff, who was conscious at the time, without consent, justification, privilege, or probable cause.

65. The actions of one or more of Defendant John Does, including the arresting officer, caused Plaintiff to sustain the Injuries.

66. Defendant John Does, including the arresting officer, took the aforementioned actions against Plaintiff during the course, and within the scope, of employment with the NYPD and Defendant City of New York.

67. Defendant John Does, including the arresting officer, were acting under color of state law at all times during the Incident.

68. The actions taken by Defendant John Does, including the arresting officer, against Plaintiff were willful, wanton, reckless, and/or malicious, and therefore entitle Plaintiff to punitive damages in an amount to be determined at trial.

SECOND CAUSE OF ACTION
VIOLATION OF 42 U.S.C. 1983 – FALSE IMPRISONMENT/UNLAWFUL DETENTION
As Against Defendant John Does

69. Plaintiff repeats and realleges each and every allegation contained in Paragraphs 1 through 68, inclusive, as though fully set forth herein.

70. Under the Constitution of the United States of America and 42 U.S.C. 1983, Plaintiff has the right to be free from unreasonable and illegal searches and seizures, including false imprisonment.

71. One or more of Defendant John Does violated Plaintiff's rights when she was intentionally arrested and confined, while conscious at the time, without consent, justification, privilege, or probable cause.

72. The actions of one or more of Defendant John Does, including the arresting officer, caused Plaintiff to sustain the Injuries.

73. Defendant John Does took the aforementioned actions against Plaintiff during the course, and within the scope, of employment with the NYPD and Defendant City of New York.

74. Defendant John Does were acting under color of state law at all times during the Incident.

75. The actions taken by Defendant John Does against Plaintiff were willful, wanton, reckless, and/or malicious, and therefore entitle Plaintiff to punitive damages in an amount to be determined at trial.

THIRD CLAIM FOR RELIEF
VIOLATION OF 42 U.S.C. 1983 – WARRANTLESS/ILLEGAL SEARCH
As Against Defendant John Does

76. Plaintiffs repeat and reallege each and every allegation contained in Paragraphs 1 through 75, as though fully set forth herein.

77. Under the Constitution of the United States of America and 42 U.S.C. 1983, Plaintiff has the right to be free from illegal searches and seizures in her home/apartment, which includes searches beyond the scope of what may be an otherwise legal warrant.

78. Defendant John Does violated Plaintiff's rights when they intentionally arrested/detained and confined Plaintiff in the Apartment and searched the Apartment without consent, privilege, or a warrant (and absent exigent circumstances).

79. Defendant John Does violated Plaintiff's rights when they searched the apartment in a way which exceeded the authority of that granted by any warrant Defendant John Does may have had (and did not produce).

80. The actions of one or more of Defendant John Does, including the arresting officer, caused Plaintiff to sustain the Injuries.

81. Defendant John Does took the aforementioned actions against Plaintiff during the course, and within the scope, of employment with the NYPD and Defendant City of New York.

82. Defendant John Does were acting under color of state law at all times during the Incident.

83. The actions taken by Defendant John Does against Plaintiff were willful, wanton, reckless, and/or malicious, and therefore entitle Plaintiff to punitive damages in an amount to be determined at trial.

FOURTH CLAIM FOR RELIEF
VIOLATION OF CIVIL RIGHTS – FAILURE TO INTERVENE
As Against Defendant John Does

84. Plaintiffs repeat and reallege each and every allegation contained in Paragraphs 1 through 83, inclusive, as though fully set forth herein.

85. Under the Constitution of the United States of America and 42 U.S.C. 1983, police officers have an affirmative duty to protect the constitutional rights of citizens by intervening when other police officers commit constitutional violations in their presence.

86. On the date of the Incident, one or more of Defendant John Does violated Plaintiff's constitutional rights when, in his/her/their presence, one or more of Defendant John Does falsely arrested Plaintiff, yet did not intervene to protect Plaintiff.

87. On the date of the Incident, one or more of Defendant John Does violated Plaintiff's constitutional rights when, in his/her/their presence, one or more of Defendant John Does falsely imprisoned Plaintiff, yet did not intervene to protect Plaintiff.

88. On the date of the Incident, one or more of Defendant John Does violated Plaintiff's constitutional rights when, in his/her/their presence, one or more of Defendant John Does illegally searched Plaintiff's apartment without a warrant, yet did not intervene to protect Plaintiff.

89. On the date of the Incident, one or more of Defendant John Does violated Plaintiff's constitutional rights when, in his/her/their presence, one or more of the remaining Defendant John Does illegally searched Plaintiff's apartment and exceeded the scope of any warrant Defendant John Does may have had (and refused to produce), yet did not intervene to protect Plaintiff.

90. Defendant John Does' (in)actions caused Plaintiff to sustain the Injuries.

91. Defendant John Does took the aforementioned (in)actions against Plaintiff during the course, and within the scope, of employment with Defendant City of New York.

92. The actions taken by Defendant John Does against Plaintiff were willful, wanton, reckless, and/or malicious, and therefore entitle Plaintiff to punitive damages in an amount to be determined at trial.

FIFTH CAUSE OF ACTION
VIOLATION OF 42 U.S.C. 1983 – MUNICIPAL LIABILITY
As Against Defendant City of New York

93. Plaintiff repeats and realleges each and every allegation contained in Paragraphs 1 through 92, inclusive, as though fully set forth herein.

94. NYPD police officers and police personnel routinely violate citizens' civil rights while executing search warrants in homes and apartments.

95. During the execution of a search warrant, NYPD police officers routinely refuse to read arrestees Miranda rights before interrogating them.

96. During the execution of a search warrant, NYPD police officers routinely refuse to display their badges.

97. During the execution of a search warrant, NYPD police officers routinely threaten and coerce arrestees by telling them that they will be ejected from public housing if they do not cooperate.

98. During the execution of a search warrant, NYPD police officers routinely threaten arrestees by telling them that they will live in a shelter if they do not cooperate.

99. During the execution of a search warrant, NYPD police officers routinely threaten arrestees by telling them that their animals will be taken by the ASPCA if they do not cooperate.

100. Defendant City of New York has shown a deliberate indifference towards citizens with respect to the foregoing unconstitutional policies.

101. Plaintiff sustained the Injuries as a result of Defendant City of New York's foregoing unconstitutional policy(ies).

102. The aforementioned actions of Defendant John Does resulted from, and were taken pursuant to, the above-mentioned *de facto* policy(ies) and/or well-settled and widespread customs and practices of Defendant City of New York, implemented by members of the NYPD.

103. Defendant City of New York is liable and responsible for all injuries resulting from its deliberate indifference to these unconstitutional practices.

FIFTH CAUSE OF ACTION
FALSE ARREST
As Against Defendants

104. Plaintiff repeats and realleges each and every allegation contained in Paragraphs 1 through 103, inclusive, as though fully set forth herein.

105. One or more of Defendant John Does, including the arresting officer, intentionally caused Plaintiff to be arrested and confined at the 25th Precinct and then to Central Booking.

106. One or more of Defendant John Does, including the arresting officer, did not have probable cause or other justification to arrest and confine Plaintiff, who was conscious at the time.

107. Plaintiff did not consent to the aforementioned imprisonment and confinement.

108. The above actions taken by one or more of Defendant John Does, including the arresting officer, caused Plaintiff to sustain the Injuries.

109. Defendant John Does, including the arresting officer, took the aforementioned actions against Plaintiff during the course, and within the scope, of employment with Defendant City of New York.

110. Defendant City of New York is liable for the acts of its agents/employees, including Defendant John Does, taken against Plaintiff during the course, and within the scope, of employment by Defendant City of New York under the doctrine of *respondeat superior*.

SIXTH CAUSE OF ACTION
FALSE IMPRISONMENT
As Against Defendants

111. Plaintiff repeats and realleges each and every allegation contained in Paragraphs 1 through 110, inclusive, as though fully set forth herein.

112. One or more of Defendant John Does, including the arresting officer, intentionally caused Plaintiff to be imprisoned and confined at the 25th Precinct and then to Central Booking.

113. One or more of Defendant John Does, including the arresting officer, did not have probable cause or consent or other justification to imprison and confine Plaintiff, who was conscious during this time.

114. The above actions taken by one or more of Defendant John Does, including the arresting officer, caused Plaintiff to sustain the Injuries.

115. Defendant John Does, including the arresting officer, took the aforementioned actions against Plaintiff during the course, and within the scope, of employment with Defendant City of New York.

116. Defendant City of New York is liable for the acts of its agents/employees, including Defendant John Does, taken against Plaintiff during the course, and within the scope, of employment by Defendant City of New York under the doctrine of *respondeat superior*.

SEVENTH CAUSE OF ACTION
NEGLIGENT HIRING, TRAINING, AND SUPERVISION
As Against Defendant City of New York

117. Plaintiff repeats and realleges each and every allegation contained in Paragraphs 1 through 116, inclusive, as though fully set forth herein.

118. Defendant City of New York has a duty to train and supervise its police force to ensure that police officers read arrestees their Miranda rights before interrogating them during the search of an apartment/home.

119. Defendant City of New York has a duty to train and supervise its police force to refrain from hiding their badges from arrestees during the execution of a search warrant.

120. Defendant City of New York has a duty to train and supervise its police force to refrain from threatening and coercing arrestees by telling them that they will be ejected from public housing if they do not cooperate during the search of their apartment/home.

121. Defendant City of New York has a duty to train and supervise its police force to refrain from threatening and coercing arrestees by telling them that they will live in a shelter if they do not cooperate during the search of their apartment/home.

122. Defendant City of New York has a duty to train and supervise its police force to refrain from threatening and coercing arrestees by telling them that their animals will be taken by the ASPCA if they do not cooperate during the search of their apartment/home.

123. Defendant City of New York breached its aforementioned duties.

124. Plaintiff sustained the Injuries as a result of the aforementioned breaches.

125. Defendant City of New York is liable for the acts of its agents/employees, including Defendant John Does, taken against Plaintiff during the course, and within the scope, of employment by Defendant City of New York under the doctrine of *respondeat superior*.

DEMAND FOR JURY TRIAL

126. Plaintiff demands a trial by jury.

WHEREFORE, Plaintiff respectfully requests that this Court enter Judgment in her favor and against Defendants as follows:

- a. compensatory and punitive damages as against Defendant City of New York and/or Defendant John Does, jointly and severally, in a combined amount to be determined at trial;
- b. attorney's fees incurred during this action, pursuant to 42 U.S.C. 1988(b) or otherwise, the determination of which lies within the discretion of this Court;
- c. costs incurred during this action, pursuant to 42 U.S.C. 1988(b) or otherwise, the determination of which lies within the discretion of this Court;
- d. expert fees incurred during this action, pursuant to 42 U.S.C. 1988(c) or otherwise, the determination of which lies within the discretion of this Court;
- e. all statutory interest on any sums awarded to Plaintiff; and
- f. such other and further relief as the Court deems proper and fair.

Dated: New York, New York
October 31, 2013

Respectfully yours,

MARK A. MARINO, PC



Mark A. Marino
Attorney for Plaintiff Elsa Rivera
380 Lexington Avenue, 17th Floor
New York, New York 10168
Tel: 212.748.9552
Fax: 646.219.5350